

Court No. - 32

Case :- WRIT - C No. - 25879 of 2018

Petitioner :- Mahadev Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Jitendra Prasad Mishra

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

Sri Krishna Agarawal, learned counsel for the Electricity Department prays for and is granted three days' time to seek instructions in the matter.

Put up as fresh 6.8.2018.

Order Date :- 31.7.2018

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Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

This writ petition has been, inter alia, filed for the following reliefs;

"A. Issue a writ, order or direction in the nature of writ of certiorari to quash the impugned recovery certificate dated 24.03.2017 passed by Executive Engineer, Vidhut Vitran Khand, Karvi, District Chitrakoot/respondent no. 3.

B. Issue a writ, order or direction in the nature of writ of MANDAMUS commanding and directing the Respondent no. 3 to not recover the assessed amount of Rs. 3,99,217.00 from the petitioner as demanded through impugned recovery certificate dated 24.03.2017."

By order dated 31.7.2018 Sri Krishna Agarawal, learned counsel for the Electricity Department was granted time to seek instructions in the matter. In pursuance of the said order, learned counsel appearing on behalf of the Electricity Department has produced a copy of the assessment order dated 7.2.2017 which shows that no date was fixed in the matter and only 7 days' time was granted to the petitioner to file his objection. The said document is taken on record.

A perusal of the assessment order dated 7.2.2012 clearly shows that no date was fixed for appearance of the petitioner. Under Clause 6.1 (b) of the Electricity Supply Code, 2005, it has been provided that provisional assessment along with show cause notice to the consumer would be issued after giving 15 working days' notice for submission of reply along with fixing a date and time. But in the present case neither 15 working days' time has been given nor the date and time has been fixed for hearing.

In view of the above, the writ petition is allowed and the assessment order dated 7.2.2017 issued by the Executive Engineer, Respondent No. 3 as well as consequent demand notice dated 24.3.2017 are hereby quashed. The petitioner is

directed to appear before the Respondent No. 3, Executive Engineer on 24.8.2018 at 11 A.M. along with a certified copy of this order enclosing therewith a copy of the writ petition along with its Annexures as well as his objection and adduce any evidence, if any, in support of his contention. The Respondent No. 3, thereafter, shall pass the final order within 15 days thereafter by a speaking order after considering the objections of the petitioner as well as the contentions of petitioner.

Order Date :- 6.8.2018

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